

113	Yu v. Universal Waste Systems, Inc., 2026-10548728	DEMURRERS TO AMENDED COMPLAINT – SUSTAINED WITH LEAVE TO AMEND MOTION TO STRIKE – GRANTED On February 27, 2026, Plaintiff Shihu Yu, proceeding <i>in pro per</i>, filed the operative First Amended Complaint against Defendants WM Collection & Recycling, Inc., BHE Management Corporation, Dedicated Transportation Services, Inc. and DOES 1-20, which contains the following causes of action: (1) negligence pursuant to Civil Code section 1714(a), (2) violation of Unruh Civil Rights Act, Civil Code section 51, (3) wrongful towing from disabled space pursuant to Vehicle Code sections 22658 and 22511.8, and (4) conversion pursuant to Civil Code sections 3336 and 3337. (ROA 10.) Defendant Dedicated Transportation Services, Inc. demurs to the entire complaint for failure to state facts sufficient to constitute a cause of action and uncertainty. (ROA 24.) Defendant BHE Management Corporation also demurs all causes of action alleged in the complaint and further moves to strike Plaintiff’s claim for punitive damages. (ROAs 32.) Plaintiff failed to oppose the motion. Based on the non-opposition, the Court may “deem plaintiff[] to have abandoned the issues” or “claims” addressed in the Demurrers and Motion to Strike. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Defendants’ arguments presented in the Demurrers and Motions to Strike. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566, <i>as modified</i> (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)
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		In addition, the Court notes that the allegations in the First Amended Complaint are generally uncertain. In particular, the First Amended Complaint fails to “separately state” each cause of action alleged by “number” and “nature” as required by the California Rules of Court. (Cal. Rules of Court, rule 2.112 and Code Civ. Proc., § 425.10.) Moreover, while the First Amended Complaint contains facts, it does not contain a “statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10, subd. (a).) The Court and Defendant must be able to discern which facts are alleged in support which causes of action. Therefore, the Demurrers are SUSTAINED WITH LEAVE TO AMEND and the Motion to Strike is GRANTED WITH LEAVE TO AMEND. Plaintiff shall file a second amended complaint within 20 days of the date of this order. Plaintiff’s motion for leave to amend, scheduled for 08/24/2026, is deemed moot and ordered off calendar. The case management conference scheduled for 08/10/2026 is continued to 10/12/2026 at 1:30 p.m. Defendants to give notice.
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